



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

March 30, 2022

### **POLICE COMMISSIONER'S PENALTY DEPARTURE**

**Re:** CCRB Case No. 202004474 regarding Police Officer Justin Adetimirin, Tax No. 965920 (DADS No. 2021-24270)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officer Adetimirin do not rise to the level of actionable misconduct. Police Officer Adetimirin's actions, as captured by a bystander's hastily recorded cellphone video, lack any contextual reference upon which a determination as to their propriety may be made.

The underlying event occurred during a chaotic and violent situation; however, the available video footage is not clear and does not explain the reasons for Police Officer Adetimirin's actions, which may have been legitimate. Thus, without more evidence or context, it is not possible to discern the true reasons for Police Officer Adetimirin's actions and to determine whether or not such actions were improper.

It must be noted that this case lacks a true complainant as an aggrieved party never came forward and the bystander who recorded the incident contacted the CCRB about an unrelated matter.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Adetimirin receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-02 (Use of Force).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', with a stylized flourish at the end.

Lourdes Soto  
Inspector  
Commanding Officer  
Police Commissioner's Office